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California lawmakers ban popular red food dye starting in 2027

October 10, 2023 | KATC TV-3 (Lafayette, LA)
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OpenURL Link

California Gov. Gavin Newsom signed legislation that bans the sale of a popular food dye.

California Assembly Bill No. 418 will ban the sale of red dye No. 3, along with several other chemicals. According to the Environmental Working Group,red dye No. 3 is found in 3,209 food products. The items range from mixed fruit to ice cream, yogurt, protein drinks and candy.

The bill passed California's Senate by a 33-3 margin before its Assembly approved it 65-6.

Newsom said the law won't be enforced until 2027, giving food makers time to revise their recipes.

"Californians trust that the food products they consume are safe," Newsom said. "The additives addressed in this bill are already banned in various other countries. Signing this into law is a positive step forward on these four food additives until the United States Food and Drug Administration reviews and establishes national updated safety levels for these additives."

Although red dye No. 3 has been allowed in food, it is prohibited in cosmetics.

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The World Health Organization analyzed a number of studies on erythrosine, which makes red dye No. 3, and concluded that "dietary exposures to erythrosine for all age groups do not present a health concern." It noted high doses and not normal consumption pose a risk.

That is despite findings that the dye can increase thyroid cancer risk among some rats.

Advocates, however, say red dye 3 and similar chemicals should be banned from food. The bill also prohibits propylparaben, potassium bromate and brominated vegetable oil from being used in food. A previous version of the bill would have banned titanium dioxide.

"Californians shouldn't have to worry that the food they buy in their neighborhood grocery store might be full of dangerous additives or toxic chemicals," said Assemblymember Jesse Gabriel, co-sponsor of the legislation. "This bill will correct for a concerning lack of federal oversight and help protect our kids, public health, and the safety of our food supply."

The Food and Drug Administration considers these chemicals as "generally recognized as safe."

"General recognition of safety through scientific procedures is based upon the application of generally available and accepted scientific data, information, or methods, which ordinarily are published, as well as the application of scientific principles, and may be corroborated by the application of unpublished scientific data, information, or methods," the FDA said.

The law is punishable by a civil penalty of up to $5,000 for a first violation and up to $10,000 for each subsequent violation.

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  Boggs, J. (2023, October 10). California lawmakers ban popular red food dye starting in 2027*KATC TV-3 (Lafayette, LA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19496EC9D1620ED8.